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Provision of March 27, 2025
Register of provisions
No. 188 of March 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Prof. Pasquale Stanzione;

PREMISES

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Ms. XX, a former employee of the Municipality
of Polino (hereinafter, the "Municipality"), has alleged,
through her lawyer, an alleged
violation of the regulations concerning the protection
of personal data.

In particular, the complainant stated that, despite the employment relationship with the Municipality having ended on December 30, 2019, the email address assigned to her by the Entity ([complainant's name.surname of the complainant]@comune.polino.tr.it) would have remained active, with automatic forwarding of incoming email messages to the address "segreteria@comune.polino.tr.it".

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n XX of XX), the Municipality, with note of XX (prot. n. XX), stated, in particular, that:

the employment relationship with the complainant ceased "as of 30/12/2019";

"the [complainant] [...] performed] managerial functions, pursuant to Article 107, paragraphs 2 and 3 and 109, paragraph 2 of Legislative Decree 267/2000";

"the Municipality [...] is an entity with only 206 inhabitants and, at the time, had only one head of the administrative/accounting area, without others who could perform the functions assigned to the [complainant]";

despite timely requests made to the complainant, it was not possible "to obtain information from [her regarding the] ongoing procedures related to her responsibilities, particularly with the offices of the MEF (the very important communications/ data transmissions with the BDAP) and therefore, [the Municipality] found itself compelled, in order to avoid damages [...] to operate in the following manner, at the time of the termination of the employment relationship [...]: 1) a new mailbox segreteria@comune.polino.tr.it was created [...] to which all messages (received and sent) from the [complainant's] email account were imported; 2) the email account [of the complainant] was

deleted and replaced with an "alias" that forwards received emails to the mailbox segreteria@comune.polino.tr.it; [...]; the access account to the institutional portal [of the complainant] was removed"; the Municipality acted in this manner "to avoid serious and irreparable damages, not only financial, which would certainly have resulted in the Municipality's insolvency (among these, the budgets had not been submitted to the BDAP, causing the suspension of transfers for several years with serious financial repercussions; investigations and discussions were ongoing with the local Court of Auditors, all accesses on platforms, PCs, etc. were effectively blocked)".

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts that emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph

2, of the Regulation, for the violation of Articles 5, paragraph 1, letter a), 6, 12, 13, 14, and 88, paragraph 1, of the Regulation, as well as 113 of the Code.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note of XX (prot. n. XX), the Municipality has presented a defensive memorandum, stating, in particular, that:

“the Municipality [...] has approximately 200 (two hundred) inhabitants [...] and has only 3 employees in its staff (one of whom is on a fixed-term contract)”;

“at the time of the events, the [claimant] held a ‘Organizational Position’ (top level of category D) solely responsible for the administrative/accounting area with managerial functions, pursuant to Article 107, paragraphs 2 and 3 and 109, paragraph 2 of Legislative Decree 267/2000”;

“today, in light of what happened, it has been decided to adopt a single email address for all offices ‘info@comune.polino.tr.it’ except for the technical office [...], but at the time of the events [...] it was left to the same to use the [personal] address to communicate and exchange documents with colleagues and other administrations”;

considering that the interested party had terminated the employment relationship “without having carried out [a] handover, the Municipality [...] found itself in serious difficulty as it did not have access to the necessary documentation to ensure its functioning”;

“unlike what happens in larger Entities with more employees, in the Municipality [...] the [claimant,] [...] was the only one with access to the documentation, databases, and procedures [...]”;

it was not possible to recover the documents that had not gone through the Entity's electronic protocol, namely “those [of the claimant] exchanged directly with colleagues and contacts as well as those [...] archived [by the claimant] in the email inbox in question”;

“[...] there is no evidence of access to any data unrelated to work activity and no investigation was conducted into the political, religious, or union opinions of the worker”;

“the [...] Presidential Decree 62 of 2013, in Article 11-bis expressly limits the use of institutional accounts ‘for purposes strictly related to work activity or attributable to it and cannot in any way compromise the security or reputation of the administration [and, therefore,] [...] in the inbox in question, there could not be, and in fact there were not, messages unrelated to work activity”;

“the [claimant] had been expressly informed that, in the absence of cooperation from her, the Municipality would have to directly acquire the documentation necessary for the continuation of its activities”;

“this communication, although made orally, perfectly meets the requirements of the summary information as it gave the interested party the opportunity to know that, in case of her inaction, a processing of personal data would be carried out in the ways known to her as the service manager”;

“similarly, the senders, all public administrations or companies, were made aware of the circumstance that, after the termination of the employment relationship with the claimant, messages addressed to the [claimant's email address] had been received at the address ‘segreteria@comune.polino.tr.it’ at the time of the first contact/response as the change of the reply address appeared clearly and transparently”;

“[...] the [claimant's email inbox] remained active for a few months, compatible with the state of emergency that arose [...]; the inbox is now disabled [...]”.

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see protocol no. XX of XX), the Municipality declared, in particular, that:

“the Municipality is an Entity of very modest size (approximately 200 inhabitants), equipped with scarce organizational resources (at the time of the events there were only two employees and the only claimant was in a top position, having in fact, from an operational perspective, the responsibility for the financial and administrative management of the Municipality)”;

"[...] during that period [the claimant] had several particularly important and urgent proceedings underway, one of which was with the Court of Auditors, regarding the situation of possible financial distress of the Entity. Many of the data and documents requested by the Court of Auditors were only available to the claimant, as they had passed through the email inbox assigned to her personally, and their timely retrieval was crucial to avoid even the declaration of financial distress of the Entity, with serious and irreparable damage, especially considering that the Municipality's budgets had not been deposited. Nevertheless, [...] such data and documents [were not made] available to the Entity";

"the claimant had registered on the IT platform for the deposit of budgets (BDAP) using her personal email address assigned by the Municipality and, therefore, even after the termination of the employment relationship, the Municipality could not access that platform to modify the registration data";

"the Municipality thus acted solely to safeguard the public interest and prevent serious and irreparable damage to the Entity";

"there was no intention to infringe on the claimant's privacy, as the Municipality only retrieved information and documents relevant for institutional purposes, having not accessed any personal email messages";

"[...] during the period when the events subject to the complaint occurred, the Municipality was facing a seismic emergency situation, as the

****The municipality falls within the perimeter of the crater of the seismic event of 2016.****

3. Outcome of the investigative activity.

3.1 The lawfulness of the processing.

In the framework of the Regulation and the Code, the employer may process the personal data of workers (see art. 4, no. 1, of the Regulation), including data related to "special categories," if the processing is necessary "to comply with a legal obligation to which the data controller is subject" (arts. 6, par. 1, lett. c), and 2 and 3, and art. 9, par. 2, lett. b) and 4; 88 of the Regulation) or "for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (art. 6, par. 1, lett. e), 2 and 3, and art. 9, par. 2, lett. g), of the Regulation; arts. 2-ter and 2-sexies of the Code).

The employer is also, in any case, required to respect the principles regarding data protection (art. 5 of the Regulation) and must be able to demonstrate that the processing is carried out in accordance with the Regulation (arts. 5, par. 2, and 24 of the Regulation).

Regarding the proper use of email and the Internet in the employment relationship, the Authority, since 2007, has provided specific guidance to data controllers (see provision "Work: the Authority's guidelines for email and internet," adopted with Del. no. 13 of March 1, 2007, web doc no. 1387522), highlighting, in particular, that "the content of email messages - as well as the external data of communications and attached files - concerns forms of correspondence supported by guarantees of confidentiality protected even constitutionally, the rationale of which lies in protecting the essential core of human dignity and the full development of personality in social formations; further protection derives from criminal laws safeguarding the inviolability of secrets (arts. 2 and 15 of the Constitution; Constitutional Court, July 17, 1998, no. 281 and March 11, 1993, no. 81; art. 616, fourth paragraph, of the Penal Code; art. 49 of the Digital Administration Code)."

This implies that, even in the public and private work context, there exists a legitimate expectation of confidentiality concerning the messages subject to correspondence (see, more recently, the "Guidance Document. IT programs and services for managing email in the work context and processing of metadata" of June 6, 2024, web doc no. 10026277, par. 2, and the referenced "Guidelines of the Authority for email and Internet" of March 1, 2007, no. 13, web doc no. 1387522, point 5.2 lett. b). In the aforementioned Guidelines of the Authority, it has been clarified, among other things, that every operation carried out in relation to the email service must be performed in compliance with the principles of necessity, correctness, relevance, and non-excessiveness, as well as with a level of protection sufficient to prevent unjustified interference with the fundamental rights of workers, third-party senders, and/or recipients of the same communications. The Authority has also highlighted that the conduct of the data controller, who proceeds, after the termination of the employment

relationship of the interested party, to remove the relevant account, after deactivating it and simultaneously adopting automatic systems to inform third parties and provide them with alternative email addresses related to the activities of the same data controller, can be considered compliant with the aforementioned principles, thus avoiding viewing incoming or outgoing communications present on the individualized account assigned to the worker (see, most recently, provisions of August 31, 2023, no. 464, web doc no. 9942133; June 22, 2023, no. 263, web doc no. 9920814; March 9, 2023, no. 68, web doc no. 9877754, as well as the previous ones referenced therein).

That said, from the investigation related to the specific case, it emerged that, at the time of the termination of the employment relationship with the complainant, the Municipality transferred all incoming and outgoing email messages from the email account "[complainant's first name].[complainant's last name]@comune.polino.tr.it," which was assigned to the interested party at the time, to the email account "segreteria@comune.polino.tr.it." Furthermore, after deactivating the aforementioned email account of the complainant, the Municipality created a virtual email address (so-called alias) also named "[complainant's first name].[complainant's last name]@comune.polino.tr.it," but associated with the address "segreteria@comune.polino.tr.it," with the effect that messages sent by senders to the complainant's email address, trusting they were corresponding with her, were, in fact, delivered to the "segreteria@comune.polino.tr.it" inbox. The Municipality therefore had access to both the email messages received in the email account previously assigned to the complainant on a personal basis and those subsequently sent to the complainant but delivered, as mentioned, to the "segreteria@comune.polino.tr.it" inbox, due to the creation of the aforementioned alias, thus carrying out a processing of personal data relating to the complainant and other interested parties (senders/recipients/other subjects mentioned in the emails and their attachments) in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of arts. 5, par. 1, lett. a), and 6 of the Regulation.

On another but related aspect, it is noted that, as a result of the migration to the email account "segreteria@comune.polino.tr.it" of the email messages previously received by the complainant or sent to her, as well as the creation of the aforementioned alias, with the consequent... sent to the email address "segreteria@comune.polino.tr.it" of messages addressed to the complainant, the Municipality has implemented a "communication" (see art. 2-ter, paragraph 4, letter a), of the Code) of the personal data of the complainant and other interested parties (senders; other subjects mentioned in the email messages and their attachments) to the personnel authorized to access the email account named "segreteria@comune.polino.tr.it". As reiterated by the Guarantor on numerous occasions, the data controller, in order to ensure compliance with the principles regarding the protection of personal data (see art. 5 of the Regulation), must, at the time of termination of the employment relationship, remove the email account assigned to the employee, following its deactivation and the simultaneous adoption of automatic systems aimed at informing third parties and providing them with alternative addresses related to their professional activity, also adopting measures to prevent the viewing of incoming messages during the period in which such automatic system is in operation (see the "Guidelines of the Guarantor for email and Internet", cited, especially point 5.2, letter b); see also provisions of December 21, 2023, no. 602, web doc no. 9978536; March 9, 2023, no. 68, web doc no. 9877754; July 21, 2022, no. 255, web doc no. 9809466; April 7, 2022, no. 127, web doc no. 9771545; September 29, 2021, no. 353, web doc no. 9719914; December 4, 2019, no. 216, web doc 9215890; February 1, 2018, no. 53, web doc no. 8159221; in the same sense see Recommendation CM/Rec(2015)5 of the Committee of Ministers to Member States on the processing of personal data in the employment context, especially para. 14.5).

In this specific case, however, the Municipality, by creating the aforementioned alias email account, apparently attributable to the complainant, has generated in third parties the belief that they could correspond with her on an individual basis, with an expectation of confidentiality, ignoring that the senders of the messages would actually have reached a shared address ("segreteria@comune.polino.tr.it") accessible by multiple subjects within the municipal organization. It must therefore be concluded that the Municipality has also engaged in unlawful communication of

personal data, having acted in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation.

On the other hand, the defensive argument presented by the Municipality, according to which the aforementioned initiatives would have been necessary to ensure the proper and regular conduct of administrative activities following the termination of the employment relationship with the complainant and the alleged lack of cooperation on her part in ensuring an orderly handover, cannot be accepted. This is because, based on the applicable sector regulations regarding electronic protocol and the management of document flows within administrative proceedings, the Entity should have acquired the documentation of interest from its electronic protocol, without accessing the email account assigned on an individual basis to its employee. This is also considering that, as stated by the Authority in numerous provisions, email systems, by their very nature, do not allow for the necessary characteristics of authenticity, integrity, reliability, readability, and retrievability of documents to be guaranteed (see, most recently, provision of June 22, 2023, no. 263, web doc no. 9920814 and the previous ones mentioned therein). Although the Municipality has highlighted the service disruption resulting from the alleged improper use of the email system by the complainant as a means of archiving and managing institutional documentation, this circumstance, however, cannot be deemed sufficient to legitimize the Entity's consultation of the email messages contained in the email account individually assigned to the complainant.

Reiterating that there is also a legitimate expectation of confidentiality regarding the messages subject to correspondence in both public and private work contexts, constitutionally protected, it is specified that Article 11-bis of the D.P.C.M. April 16, 2013, no. 62 (Regulation containing the code of conduct for public employees, pursuant to Article 54 of Legislative Decree March 30, 2001, no. 165), invoked by the Municipality, while allowing the use of institutional accounts for purposes related to work activity or attributable to it (paragraph 2), nevertheless admits the use of IT tools provided by the administration to fulfill personal obligations, provided that the activity is contained within short times and does not prejudice institutional tasks (paragraph 5). In any case, account is taken of what was stated by the Municipality both in the defense memorandum and during the hearing, with an assumption of responsibility also pursuant to Article 168 of the Code, regarding the circumstance that the complainant's email account did not contain messages of a personal nature that could be relevant for the purposes of Article 113 of the Code.

3.2. Transparency towards the interested parties.

In compliance with the principle of “lawfulness, fairness, and transparency”, the data controller must adopt appropriate measures to provide the interested party with all the information referred to in Articles 13 and 14 of the Regulation in a concise, transparent, intelligible, and easily accessible form, using simple and clear language (Article 12 of the Regulation). From the complaint submitted by the interested party, it emerges that she had not been informed by the Municipality nor... of the migration of their email messages from their personal mailbox to the mailbox “segreteria@comune.polino.tr.it” nor the creation of the aforementioned alias mailbox.

Furthermore, it does not appear in the records that the Municipality, in the interest of ensuring the correctness and transparency of the processing, had adopted any measures to inform the senders, who believed they were corresponding directly with the complainant, of the fact that, after the termination of the employment relationship with the complainant, messages addressed to “[complainant's first name].[complainant's last name]@comune.polino.tr.it” would actually be received at the address “segreteria@comune.polino.tr.it” and, therefore, read by multiple individuals within the Entity.

Nor is it relevant that, as stated by the Municipality, it had orally informed the complainant about the circumstance that, in the absence of her cooperation, it would proceed to acquire the documents and information of interest through direct access to her email account. This is because, aside from the fact that such communication does not appear adequate to fulfill the aforementioned obligation of information, pursuant to Article 12, paragraph 1, of the Regulation, the information referred to in

Articles 13 and 14 of the same Regulation must be “provided in writing or by other means, including, where appropriate, by electronic means,” and can only be “provided orally” “if requested by the data subject [...]”. There is no evidence of this circumstance in the investigative records.

Similarly, the fact that, as claimed by the Municipality, the senders of the email messages subsequently received responses from other email addresses attributable to the Entity, thereby allowing them to deduce that they had not corresponded directly with the complainant, cannot be deemed sufficient to justify the Entity's conduct. This is also in consideration of the fact that the data controller is required to provide in writing to the data subjects, where the data has not been obtained directly from them, all the informational elements referred to in Article 14 of the Regulation regarding the processing, and it cannot be assumed that the aforementioned senders “already had the information” (Article 14, paragraph 5, letter a), of the Regulation) regarding the alias mechanism established by the Municipality.

For these reasons, while maintaining the profiles of unlawfulness of the processing already highlighted, concerning the processing of personal data of both the complainant and third parties, who, as mentioned, were unaware of the fact that the Municipality had established the aforementioned alias mechanism, it must be concluded that the Municipality also acted in a manner not compliant with the principle of “lawfulness, fairness, and transparency,” in violation of Articles 5, paragraph 1, letter a), 12, 13, and 14 of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure, nor do any of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and it is noted that the Municipality has violated Articles 5, paragraph 1, letter a), 6, 12, 13, and 14 of the Regulation.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or connected treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all the aforementioned violations are subject to the sanction provided for in Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, the conditions for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [of this paragraph], or in place of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction inflicted, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

Considering that:

- the conduct of the Municipality is characterized by seriousness, having violated the legitimate expectation of privacy, both of the complainants and of third parties (senders/recipients), in relation to the messages subject to correspondence, constitutionally protected (cf. Article 83, paragraph 2, letter a), of the Regulation);
- the violation is nonetheless isolated, having concerned only one former employee (cf. Article 83, paragraph 2, letter a), of the Regulation);
- the conduct is negligent, as the Municipality erroneously interpreted the applicable legal framework, as well as acted under the belief that it could better serve the public interest, in order to address an emergency situation and avoid detrimental consequences arising from the unavailability of information and documents contained exclusively in the complainant's email inbox, which, according to the Entity's statements, had not made a timely handover before the termination of the employment relationship (cf. Article 83, paragraph 2, letter b), of the Regulation);
- the violation, according to the statements made by the Municipality, did not concern either special categories of personal data referred to in Article 9 of the Regulation or personal data relating to criminal convictions or offenses referred to in Article 10 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation);
- it is believed that, in this case, the level of seriousness of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

Having said that, considering that the data controller is a Municipality of extremely small size (about 200 inhabitants), equipped with scarce organizational and financial resources, it is believed that, for the purpose of quantifying the sanction, the following mitigating circumstances should be taken into account:

- there are no previous relevant violations committed by the data controller (cf. Article 83, paragraph 2, letter e), of the Regulation);
- the Municipality has offered good cooperation with the Authority during the investigation (cf. Article 83, paragraph 2, letter f), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at the sum of €2,500.00 (two thousand five hundred) for the violation of Articles 5, paragraph 1, letter a), 6, 12, 13, and 14 of the Regulation, as an administrative monetary penalty deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed. This is in consideration of the fact that, as stated above, the conduct of the Municipality, although the result of an erroneous assessment, has violated the legitimate expectation of privacy, both of the complainants and of third parties (senders/recipients), in relation to the messages subject to correspondence, constitutionally protected.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Municipality of Polino for violation of Articles 5, paragraph 1, letter a), 6, 12, 13, and 14 of the Regulation, in the terms stated in the motivation;

ORDERS

the Municipality of Polino, represented by the legal representative pro tempore, with registered office at Piazza G. Marconi, 12 - 05030 Polino (TR), C.F. 00178250551, to pay the sum of €2,500.00 (two

thousand five hundred) as an administrative monetary penalty for the violations indicated in the motivation. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to resolve the dispute by payment, within 30 days, of an amount equal to half of the imposed penalty;

ENJOINS

the aforementioned Municipality, in case of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,500.00 (two thousand five hundred) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Authority's website;
- pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for in Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 27, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei